

1 **SENATE FLOOR VERSION**

2 February 11, 2025

3 SENATE BILL NO. 32

By: Stanley of the Senate

4 and

5 Miller of the House

6
7 An Act relating to the Oklahoma National Guard
8 Educational Assistance Act; amending Section 1,
9 Chapter 24, O.S.L. 2022 (70 O.S. Supp. 2024, Section
10 3231), which relates to creation of the act;
11 directing certain assistance to include program fees
12 and any other fees for courses; directing the
13 Oklahoma State Regents for Higher Education and the
14 Military Department of the State of Oklahoma to
15 jointly review certain fees; allowing the State
16 Regents to determine if certain fees are ineligible
17 for program assistance; authorizing the Department to
18 establish certain cap; modifying retention
19 eligibility; authorizing the Department to establish
20 a cap on certain program participation; modifying
21 reasons for which an application for assistance may
22 be denied; directing the Department to promulgate
23 certain regulations; directing the State Regents and
24 the Department to coordinate certain promulgation;
updating statutory references; updating statutory
language; providing an effective date; and declaring
an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 1, Chapter 24, O.S.L. 2022
(70 O.S. Supp. 2024, Section 3231), is amended to read as follows:

Section 3231. A. This act shall be known and may be cited as
the "Oklahoma National Guard Educational Assistance Act".

1 B. As used in ~~this act~~ the Oklahoma National Guard Educational
2 Assistance Act:

3 1. "Oklahoma educational institution" means an institution of
4 higher education within The Oklahoma State System of Higher
5 Education;

6 2. "Eligible Guard member" means a current member of the
7 Oklahoma National Guard in good standing who has a high school
8 diploma or who has completed General Educational Development (GED)
9 requirements and who has secured admission to and enrolled in an
10 Oklahoma educational institution;

11 3. "Graduate program" means a program offered by an Oklahoma
12 educational institution that leads to the award of a master's
13 degree;

14 4. "Program" means the Oklahoma National Guard Educational
15 Assistance Program established pursuant to the provisions of this
16 section; and

17 5. "Undergraduate program" means a program offered by an
18 Oklahoma educational institution that leads to the award of an
19 associate's degree or a baccalaureate degree.

20 C. There is hereby created the Oklahoma National Guard
21 Educational Assistance Program to provide assistance to eligible
22 Guard members who enroll in an Oklahoma educational institution.
23 Subject to the availability of funds and limitations established by
24 the Oklahoma State Regents for Higher Education, the amount of

1 assistance shall be equivalent to the amount of resident tuition,
2 mandatory fees, ~~and~~ program fees, academic service fees, and any
3 other fees for courses in which the eligible Guard member is
4 enrolled, not to exceed a maximum of eighteen (18) credit hours each
5 semester. The mandatory fees, program fees, academic service fees,
6 and any other fees for courses shall be jointly reviewed by the
7 State Regents and the Military Department of the State of Oklahoma.
8 The State Regents may determine fees or fee amounts to be ineligible
9 for program assistance. If the State Regents make such a
10 determination, program assistance for those fees or fee amounts
11 shall not be provided to eligible Guard members participating in the
12 program.

13 1. The amount of assistance provided to an eligible Guard
14 member enrolled in an undergraduate program shall not exceed a
15 maximum of one hundred twenty (120) credit hours in pursuit of an
16 associate's degree and/or a baccalaureate degree.

17 2. Subject to the assistance for eligible Guard members
18 enrolled in undergraduate programs being fully funded, assistance
19 shall be provided to an eligible Guard member with a baccalaureate
20 degree enrolled in a graduate program. The amount of assistance
21 provided to an eligible Guard member enrolled in a graduate program
22 shall not exceed a maximum of forty (40) credit hours in pursuit of
23 a master's degree.

1 3. Assistance provided pursuant to this section shall be
2 granted without any limitation other than the amount of funds
3 available for the ~~Program~~ program and the number of eligible Guard
4 members who apply, subject to any cap established by the Military
5 Department.

6 4. Assistance allowed by this section shall not be allowed for
7 courses taken in excess of the requirements for completion of an
8 undergraduate program or a graduate program, whichever is applicable
9 for the eligible Guard member.

10 D. Assistance provided pursuant to this section shall be
11 allocated to the Oklahoma educational institution from the Oklahoma
12 National Guard Educational Assistance Revolving Fund created
13 pursuant to Section ~~2~~ 3232 of this ~~act~~ title.

14 E. To be eligible to apply for the ~~Program~~ program, an eligible
15 Guard member shall:

16 1. Have at least one (1) year remaining on his or her
17 enlistment contract at the beginning of any semester for which the
18 member applies for assistance pursuant to this section;

19 2. Agree in writing to complete his or her current service
20 obligation in the Oklahoma National Guard; and

21 3. Agree in writing to serve actively in good standing with the
22 Oklahoma National Guard for not less than twenty-four (24) months
23 after completion of the last semester for which the member receives
24 assistance pursuant to this section.

1 F. To retain eligibility for the ~~Program~~ program, an eligible
2 Guard member shall:

3 1. Maintain good academic standing and satisfactory academic
4 progress according to standards of the Oklahoma educational
5 institution in which the member is enrolled;

6 2. Maintain the requirements for retention and degree
7 completion as established by the Oklahoma educational institution in
8 which the member is enrolled;

9 3. Maintain a minimum grade point average of 2.0 on a 4.0
10 scale; ~~and~~

11 4. Maintain satisfactory participation in the Oklahoma National
12 Guard; and

13 5. Possess a Military Occupational Specialty (MOS) or Air Force
14 Specialty Code (AFSC) after his or her first semester.

15 G. An eligible Guard member seeking assistance pursuant to the
16 provisions of this section shall submit an application on a form
17 prescribed by the Military Department of the State of Oklahoma to
18 the Educational Service Office of the Military Department prior to
19 the semester for which assistance is sought. The eligible Guard
20 member's Commander or his or her designee shall confirm a member's
21 standing and eligibility to the Oklahoma educational institution in
22 which the student is enrolled. The Military Department may
23 establish a cap on the number of eligible Guard members allowed to
24 participate per semester per undergraduate or graduate program.

1 H. The eligible Guard member's Commander may deny an
2 application submitted by an eligible Guard member for continued
3 ~~Program~~ program assistance if he or she fails to comply with the
4 provisions of paragraph 1, 2, ~~or~~ 3, 4, or 5 of subsection F of this
5 section.

6 I. An eligible Guard member who has received ~~Program~~ program
7 assistance pursuant to the provisions of this section and who fails
8 to comply with the provisions of paragraph 4 of subsection F of this
9 section shall be required to repay an amount to be calculated as
10 follows:

11 1. Determine the total amount of assistance provided pursuant
12 to the provisions of this section;

13 2. Divide the amount determined in paragraph 1 of this
14 subsection by twenty-four (24); and

15 3. Multiply the amount determined in paragraph 2 of this
16 subsection by the number of months the member did not fulfill the
17 requirements of paragraph 4 of subsection F of this section.

18 Repayments shall be deposited into the Oklahoma National Guard
19 Educational Assistance Revolving Fund created pursuant to Section ~~2~~
20 3232 of this ~~act~~ title.

21 J. An eligible Guard member who has received ~~Program~~ program
22 assistance pursuant to the provisions of this section and who fails
23 to comply with the provisions of paragraph 4 of subsection F of this
24 section due to hardship circumstances may request a waiver from

1 repayment. A waiver request shall be submitted in writing to the
2 Adjutant General.

3 K. By July 1 annually, the Oklahoma State Regents for Higher
4 Education shall notify the Adjutant General of the amount of funding
5 available in the Oklahoma National Guard Educational Assistance
6 Revolving Fund created pursuant to Section ~~2~~ 3232 of this ~~act~~ title.

7 L. The Oklahoma State Regents for Higher Education shall
8 promulgate rules to implement the provisions of ~~this act~~ the
9 Oklahoma National Guard Educational Assistance Act including
10 deadlines for submission of applications required by subsection G of
11 this section. The Military Department of the State of Oklahoma
12 shall promulgate regulations pertaining to the application process
13 and the determination of eligibility for the program. The State
14 Regents and the Department shall coordinate the promulgation of
15 rules and regulations, respectively. The Adjutant General may
16 promulgate regulations to implement the provisions of ~~this act~~ the
17 Oklahoma National Guard Educational Assistance Act.

18 SECTION 2. This act shall become effective July 1, 2025.

19 SECTION 3. It being immediately necessary for the preservation
20 of the public peace, health, or safety, an emergency is hereby
21 declared to exist, by reason whereof this act shall take effect and
22 be in full force from and after its passage and approval.

23 COMMITTEE REPORT BY: COMMITTEE ON EDUCATION
24 February 11, 2025 - DO PASS